

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Tuesday, June 16, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-03553	Voje, LLC vs Carboxy International USA Inc., et al.
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Motion for an Award of Attorney's Fees and Costs

Plaintiff's motion for attorney's fees and costs is GRANTED IN PART. Attorney's fees are awarded in the amount of \$55,582.50. Costs are awarded in the amount of \$1,007.46.

As a preliminary matter, the Court finds that Plaintiff is the prevailing party and entitled to attorney's fees and costs upon the required showing.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) The court begins its assessment with a lodestar figure for the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

Plaintiff's counsel claims an hourly rate of \$325, which is representative of the rates charged in the local Merced community for the same or similar work. Accordingly, the Court finds it reasonable to set the hourly rate for counsel at \$325 per hour.

After a substantial review of the entire record and the papers offered in support and opposition of Plaintiff's motion, the court finds the time billed is excessive and finds it reasonable to reduce the hours billed by 14.5 hours.

The Court sets the lodestar at \$55,582.50. This represents the originally billed amount of \$60,295 minus \$4,712.50 for the 14.5 hour reduction.

Once a lodestar is fixed, the lodestar may be adjusted based on certain factors, including: (1) the novelty and difficulty of the questions involved; (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded other employment by the attorneys; and (4) the contingent nature of the fee award. (*Serrano v. Priest* (Serrano III) (1977) 20 Cal.3d 25, 49.) Plaintiff seeks enhancement of the lodestar by a multiplier of 2.0. However, this matter was fairly straightforward and did not raise any complex or novel issues. As such, the Court does not find that a lodestar enhancement is appropriate.

Plaintiff also seeks costs in the amount of \$1,007.46. Generally, a memorandum of costs would be filed to claim costs as the prevailing party. Although Plaintiff deviates from the established procedure by including costs in the motion for attorney's fees, they are not objected to or otherwise opposed. Absent an opposition, the Court in its discretion grants the requested costs.

Plaintiff is awarded total attorney fees and costs in the amount of \$56,589.96, to be paid within thirty (30) days of this court's order. The Court will sign the order lodged on May 5, 2026, modified to reflect this ruling.

24CV-03339

Consuelo Vazquez vs California Fresh Farms, LLC

Motion For Final Approval.

The unopposed motion for final approval of class action and PAGA settlement is GRANTED.

The Court granted preliminary approval of the settlement, finding that the amount of the settlement is fair, adequate, and reasonable. This determination remains unchanged.

The date of final accounting pursuant to Code of Civil Procedure section 384 is set for March 12, 2027, at 8:15 a.m. in Courtroom 8.

The Court will sign the proposed order lodged with the court on May 21, 2026.

24CV-04075

John Abbott v. Martin Nordenstrom, et al

Motions in limine

VACATED. No motions were filed by either party. Court trial is confirmed for June 23, 2026, at 9:00 a.m. in Courtroom 8.
